

		such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members, or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class Period, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date, and not be sent to non-participants. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The administration costs of \$4,990.00 should be included in Section 7 of page 4 of the class notice. • Section 14 on page 7 of the class notice should note that class members who exclude themselves may get money from the PAGA penalties portion of the settlement if they are an aggrieved employee. • Section 21 on page 9 of the class notice should be amended to state: “If you do nothing, and the court grants final approval of the settlement, you will receive a Settlement payment, and you will be bound by the terms of Settlement, which means that you will not be able to start a lawsuit, continue a lawsuit, or be a part of any other lawsuit against the Defendant about the legal issues in the Action.” Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
11	30-2024-01439280 Espina vs. J & E Hospitality Group Inc.	The tentative ruling is to continue the hearing for Counsel Jorge Ledezma of Ledezma Law, APLC’s (“Counsel”) Motion to Be Relieved as Counsel for Defendant Edgar Estrada Galindo to August 31, 2026 at 1:30 p.m. Counsel failed to provide proof of service of the Notice of Motion and Motion, Declaration, and Proposed Order on

		Plaintiff Erika Espina. (Cal. R. Ct., R. 3.1362(d) [“The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.”].) IT IS ORDERED THAT Counsel must provide such proof of service within five (5) days of this ruling.
12	30-2024-01384236 Doe vs. Pacific Dental Services, LLC	Defendant Pacific Dental Services, LLC (“PDS”), Amardeep Gill and Reymond Bautista Dental Corporation (“El Cerrito”), and Dhaval Patel and Amardeep Gill Dental Corporation’s (“Alamo Smiles”) (collectively, “Defendants”) Motion to Compel Further Responses to Interrogatories from Plaintiffs Janet Doe and Jane Doe (collectively, “Plaintiffs”) is DENIED AS MOOT as to the Special Interrogatories propounded by Defendants El Cerrito and Alamo Smiles, who have since been dismissed from this action. Contrary to PDS’ contention in its reply, only “the propounding party may move for an order compelling a further response . . .” (CCP § 2030.300(a) [emphasis added].) The court also DENIES the Motion as to PDS’ Special Interrogatory (“SROG”) (Set One) Nos. 3, 7, 25–28, 30–32, 34, and 38 propounded on Plaintiff Jane Doe (“Jane”). The court finds that, under the circumstances, Jane’s responses adequate and code-compliant. <u>SROG Nos. 3 and 7</u> These interrogatories ask which dates Jane visited Defendant El Cerrito’s website and which parts she visited, and Jane responded by referencing a text document containing her browser history and identifying the parts of the website that she visited. Defendants complain that the browser history is thousands of pages long, but Plaintiff contends that the documents are legible to Plaintiffs’ counsel, understandable by Defendants’ experts, and are large text files (.json) that can be searched using the Control+F functionality. “If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer